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TENTATIVE RULING

July 20, 2026

21SMCV01665 (Booth v.
Ingraham, et. al.)

RELEVANT BACKGROUND

This action was initiated by plaintiffs Ron Booth, Michele Booth, Sofia Booth, and Dominique Booth (collectively, Plaintiffs) on October 14, 2021, against defendants Lee H. Ingraham, Alexandria E. Rausch, an Individual and as Trustee of the Par Family Trust; Villa Alicante Homeowners Association, Inc., Scott Management Company, and Does 1-50. (collectively, Defendants). Plaintiffs filed numerous amendments to the complaint naming Doe defendants.

Pursuant to agreement, all relevant parties in this matter agreed to serve their initial expert designations on March 6, 2026, which was also the written-discovery cut-off date. (Dingilian Decl. ¶ 3, Ex. A). Ertz “strategically elected to serve a Notice of Non-Designation.” (Motion at p. 4:12-14.) Said non-designation stated in writing that Ertz reserved the right to call experts retained by other parties as witnesses to trial. Plaintiffs’, Villa Alicante, and DOES 5-50 designated a total of thirteen (13) retained experts. (Dingilian Decl. ¶ 4, Ex. B.)

On March 27, 2026, Ertz

received a Notice of Partial Settlement pertaining to the remaining Co-Defendants Villa Alicante Owners Association and the various Doe Defendants. (Dingilian Decl. ¶6; Ex. C.)

On May 1, 2026, this Court partially granted Ertz's motion to reopen limited discovery only as it relates to completing depositions of Plaintiff's retained experts previously noticed. But the Court's order denied the motion to the extent it sought the ability to retain or call experts previously designated/disclosed by Co-Defendants Villa Alicante Homeowner's Association.

INSTANT MOTION

On June 2, 2026, defendant David G. Ertz (Ertz) filed the instant motion for reconsideration of the Court's May 1, 2026 order. Ertz seeks relief under CCP § 473, or alternatively, under CCP §§ 2034.710, 2034.720 and 128(a)(8). Plaintiffs filed an opposition, and Ertz filed a reply.

DISCUSSION

Here, Ertz seeks reconsideration of the Court's May 1, 2026, order that partially reopened discovery but denied his request to retain and designate expert witnesses previously disclosed by co-defendants Villa Alicante Homeowners Association, Inc. prior to their settlement. The motion is made pursuant to Code of Civil Procedure section 473(b) [mistake, inadvertence, surprise, or excusable neglect] on the grounds that their service of a non-designation on the previous expert designation deadline was the result of a reasonable mistake under the circumstances and/or excusable neglect. Ertz alternatively seeks the requested relief under CCP sections 2034.710, 2034.720 [authority to grant leave to submit tardy expert witness information when statutory conditions are satisfied], and 128(a)(8) [inherent authority to amend and control their orders].

For the reasons set forth in detail below, Ertz's motion is DENIED.

A. Reconsideration

A

court has inherent power to reconsider, on its own motion, outside of the limitations of Code of Civil Procedure section 1008. (See Code Civ. Proc., § 1008.) "A motion for reconsideration may only be brought if the party moving for reconsideration can offer 'new or different facts, circumstances, or law' which it could not, with reasonable diligence, have discovered and produced at the time of the prior motion.... A motion for reconsideration will be denied absent a strong showing of diligence." (Forrest v. Dept. Of Corps. (2007) 150 Cal.App.4th 183, 202, disapproved on other grounds by Shalant v. Girardi (2011) 51 Cal.4th 1164, 1172. See also Baldwin v. Home Sav. of Am. (1997) 59 Cal.App.4th 1192, 1199 [noting that 1992 amendment to Code Civ. Proc., § 1008 tightened diligence requirements].) "[M]otions to reconsider allow the trial court to consider new facts or law relevant to its order...." (Morton v. Wagner (2007) 156 Cal.App.4th 963, 973, cf. also Wiz Tech., Inc. v. Coopers & Lybrand (2003) 106 Cal.App.4th 1, 17-18 [no relevant basis for reconsideration shown].)

Disagreement

with a ruling is not a new fact that will support the granting of a motion for reconsideration. (Gilberd v. AC Transit (1995) 32 Cal.App.4th 1494, 1500.) Code of Civil Procedure section 473 is not grounds for modifying, amending, or revoking an order, and the requirements of section 1008 must be satisfied. (Id. at p. 1500-1501; Even Zohar Constr. & Remodeling, Inc. v. Bellaire Townhouses, LLC (2015) 61 Cal.4th 830, 844.) A motion can be subject to statutory requirements under Code of Civil Procedure section 1008, regardless of its title, if it raises the same issues previously ruled upon. (Leibert v. Transworld Systems, Inc. (1995) 32 Cal.App.4th 1693, 1699.)

The

Court first notes that, although Ertz's instant motion does not expressly seek reconsideration pursuant to Code of Civil Procedure section 1008, the relief requested by Ertz is, in fact, reconsideration of the Court's May 1, 2026, order. Yet Ertz fails to address or satisfy the requirements of section 1008. (Gilberd, 32 Cal.App.4th at p. 1500-1501; Even Zohar, 61 Cal.4th at p. 844; Leibert, 32 Cal.App.4th at p. 1699.) Section 1008 requires the motion to be brought within ten days of the order and establish new or different facts, circumstances, or law. (Code Civ. Proc., § 1008.) Unless the provisions of section 1008 are strictly complied with, the Court lacks jurisdiction to modify any of its previous orders. (See Garcia

v. Hejmadi (1997) 58 Cal.App.4th 674, 691.) Ertz has not complied with such requirements. The Court therefore finds no basis to reconsider the May 1, 2026 order.

B. CCP § 473

Code

of Civil Procedure section § 473 provides, "The court may, upon any terms as may be just, relieve a party or the party's legal representative from a judgment, dismissal, order, or other proceeding taken against the party through the party's mistake, inadvertence, surprise, or excusable neglect...." (Code Civ. Proc., § 473, subd. (b).) In addition, mandatory relief is available when "accompanied by an attorney's sworn affidavit attesting to his or her mistake, inadvertence, surprise, or neglect." (Id.) The purpose of the attorney affidavit provision is to "relieve the innocent client of the burden of the attorney's fault, to impose the burden on the erring attorney, and to avoid precipitating more litigation in the form of malpractice suits." (Hu v. Fang (2002) 104 Cal.App.4th 61, 64.)

The question whether a mistake of law is excusable neglect is a question of fact, based on being reasonable as to the misconception and justified in not knowing the correct law, as contrasted with ignorance of the law and negligence in learning it. (Ron Burns Const. Co., Inc. v. Moore (2010) 184 Cal.App.4th 1406, 141, disapproved on other grounds by Even Zohar, 61 Cal.4th at p. 844.) The ground of mistake is inapposite where the ruling was the result of professional incompetence or unjustifiable ignorance of the law. (Hearn v. Howard (2009) 177 Cal.App.4th 1193, 1206.) A mistake of law is a ground for relief if the related law is complex and debatable, but not where counsel acted incompetently or in ignorance of settled law. (See, e.g., State Farm Fire & Casualty Co. v. Pietak (2001) 90 Cal.App.4th 600, 611; Pagarigan v. Aetna U.S. Healthcare of Cal., Inc. (2007) 158 Cal.App.4th 38, 45 ["claimed mistake of law was unreasonable."].) Mistakes of law are deemed excusable depending upon "the reasonableness of the misconception and the justifiability of lack of determination of the correct law." (Hanooka v. Pivko (1994) 22 Cal.App.4th 1553, 1563.)

Excusable neglect exists where counsel or the party acted as a reasonably prudent person would under the circumstances. (Id. at p. 1206.) An attorneys' negligence amounting to

conduct falling below the standard of care in the profession is imputed to their clients and does not constitute excusable neglect in support of relief under Code of Civil Procedure section 473. (Hopkins & Carley v. Gens (2011) 200 Cal.App.4th 1401, 1415; Zamora v. Clayborn Contracting Group, Inc. (2002) 28 Cal.4th 249, 258.)

Intentional strategies do not constitute mistake, inadvertence, surprise, or neglect, in support of discretionary relief. (Pagarigan, 158 Cal.App.4th at p. 45.) Courts have also found that mandatory relief is unavailable as to counsel's "intentional strategic decision" causing defaults or dismissals. (See, e.g., Jerry's Shell v. Equilon Ent., LLC (2d Dist. 2005) 134 Cal.App.4th 1058, 1074.)

Under Code of Civil Procedure section 473, "surprise" means "some condition or situation in which a party . . . is unexpectedly placed to his injury, without any default or negligence of his own, which ordinary prudence could not have guarded against." (State Farm Fire & Casualty Co. v. Pietak (2001) 90 Cal.App.4th 600, 611.)

Here, Ertz asserts that he "strategically elected to serve a Notice of Non-Designation," opting to reserve the right to call experts retained by other parties as witnesses to trial. (Motion at p. 4:12-14 ; emphasis added.) Having just conceded that it was a strategic decision, Ertz states that "Plaintiffs may be inclined to characterize Defendant Ertz's non-designation as a deliberate strategic choice rather than excusable neglect, thereby precluding relief. However, this characterization would mischaracterize the nature of Defendant Ertz's decision." (Id. at p. 7:15-18.) Ertz contends that the distinction between a deliberate strategic choice made with full knowledge of consequences and a reasonable decision based on procedural misunderstanding is material, citing *Generale Bank Nederland v. Eyes of the Beholder Ltd.* (1998) 61 Cal.App.4th 1384.

But *Generale* does not assist Ertz. In that case, the plaintiffs failed to designate their witnesses, and, plaintiff's having no other evidence, the defendant moved that the claim be denied, which was granted. (Id. at p. 1392.) The plaintiffs filed a motion under CCP section 473 to set aside the order and judgment, which was denied. (Ibid.) The Court of Appeal affirmed the trial court's order, reasoning that the attorney's affidavit of fault did not place the

judgment within mandatory provisions of statute and that the trial court did not abuse its discretion in denying relief under the discretionary portion of the attorney-fault provision. (Id. at p. 1397.)

Ertz also attempts to argue that the partial settlement constitutes a surprise, claiming that it was unforeseen. The Court disagrees. Ertz's failure to anticipate the possibility of a settlement is not a "surprise" in the context of section 473 because ordinary prudence in designating experts would have guarded against the current circumstances. (State Farm Fire, 90 Cal.App.4th at p. 611 [surprise means some condition or situation in which a party is unexpectedly placed to his injury, without any default or negligence of his own, which ordinary prudence could not have guarded against].)

In opposition, Plaintiffs argue that Ertz, having "strategically" elected not to designate a single expert witness, Ertz now seeks to undo the consequences of his own strategic decisions. Plaintiffs correctly point out that CCP section 473(b) cannot be used to cure a calculated, strategic decision, citing Jerry's Shell, 134 Cal.App.4th at p. 1073. Plaintiffs point out that Ertz admits that this was the case in his own motion. (See Motion at 5:28-6:3.)

Additionally, Plaintiffs highlight that neither mistake of law nor mistake of fact is alleged in the moving papers. Rather, Ertz's counsel admits that he reasonably believed the service of a non-designation in lieu of another designation was an appropriate measure to take. (See Motion at 3:24, 6:19, 7:1). Plaintiffs assert that a strategic election to waive procedural rights to save money is the exact opposite of a mistake and/or excusable neglect. The Court agrees.

The Court finds no basis for the relief requested pursuant to Code of Civil Procedure section 473(b) because it is clear to the Court, and conceded in Ertz's motion, that the decision to not designate expert witnesses was a strategic move to save money rather than due to surprise, mistake, or excusable neglect. (Jerry's Shell, 134 Cal.App.4th at p. 1073 [mandatory relief unavailable as to counsel's "intentional strategic decision" causing defaults or dismissals]; Pagarigan, 158 Cal.App.4th at p. 43-45 [noting that the attorney had an objectively strategic reason for his inaction, and that his unreasonable "mistake" of law would serve his strategic goal by giving him supplemental time not available to

practitioners who follow the rules].)

The Court is not persuaded by Ertz's arguments in reply that the decision resulted from a mistaken legal assumption that a non-designation with said reservation would preserve his right to call other defense expert witnesses retained by other parties at the time of trial even if those defendants settled out of the case. The applicable law at issue here concerning expert designations is not complex or debatable. Counsel's ignorance of the relatively uncomplicated applicable law concerning expert designations and failure to anticipate the possibility of a settlement is not a valid basis for the requested relief. (Ron Burns, Cal.App.4th at p. 141, disapproved on other grounds by Even Zohar, 61 Cal.4th at p. 844; Hearn, 177 Cal.App.4th at p. 1206 [unjustifiable ignorance of the law]; State Farm, 90 Cal.App.4th at p. 611 [a mistake of law is a ground for relief if the related law is complex and debatable, but not where counsel acted incompetently or in ignorance of settled law]; Pagarigan, 158 Cal.App.4th at p. 45 [claimed mistake of law was unreasonable].)

C. CCP §

2034.710 & 2034.720

Code

of Civil Procedure section 2034.300 provides:

Except as provided in Section 2034.310 and in Articles 4 (commencing with Section 2034.610) and 5 (commencing with Section 2034.710), on objection of any party who has made a complete and timely compliance with Section 2034.260, the trial court shall exclude from evidence the expert opinion of any witness that is offered by any party who has unreasonably failed to do any of the following:

(a) List that witness as an expert under Section 2034.260.

(b) Submit an expert witness declaration.

(c) Produce reports and writings of expert witnesses under Section 2034.270.

(d) Make that expert available for a deposition

under Article 3 (commencing with Section 2034.410).

(Id., § 2034.300.)

Code

of Civil Procedure section 2034.710 provides, “(a) On motion of any party who has failed to submit expert witness information on the date specified in a demand for that exchange, the court may grant leave to submit that information on a later date. (b) A motion under subdivision (a) shall be made a sufficient time in advance of the time limit for the completion of discovery under Chapter 8 (commencing with Section 2024.010) to permit the deposition of any expert to whom the motion relates to be taken within that time limit. Under exceptional circumstances, the court may permit the motion to be made at a later time. (c) The motion shall be accompanied by a meet and confer declaration under Section 2016.040.” (Id., § 2034.710.)

Code of Civil Procedure

section 2034.720 provides:

The court shall grant leave to submit tardy expert witness information only if all of the following conditions are satisfied:

(a) The court has taken into account the extent to which the opposing party has relied on the absence of a list of expert witnesses.

(b) The court has determined that any party opposing the motion will not be prejudiced in maintaining that party's action or defense on the merits.

(c) The court has determined that the moving party did all of the following:

(1) Failed to submit the information as the result of mistake, inadvertence, surprise, or excusable neglect.

(2) Sought leave to submit the information promptly after learning of the mistake, inadvertence, surprise, or excusable neglect.

(3) Promptly thereafter served a copy of the proposed

expert witness information described in Section 2034.260 on all other parties who have appeared in the action.

(d) The order is conditioned on the moving party making the expert available immediately for a deposition under Article 3 (commencing with Section 2034.410), and on any other terms as may be just, including, but not limited to, leave to any party opposing the motion to designate additional expert witnesses or to elicit additional opinions from those previously designated, a continuance of the trial for a reasonable period of time, and the awarding of costs and litigation expenses to any party opposing the motion.

(Id., § 2034.720.)

The

Court finds no valid basis for Ertz's alternative demand for relief under Section 2034.710 and 2034.720. First, the motion to submit tardy expert information is not made sufficiently in advance of the expert discovery and motion cut-offs. (Id., 2034.710, subd. (b).) Here, those deadlines expired in March of 2026. Second, as previously stated, Ertz has not shown that he failed to submit the information as the result of mistake, inadvertence, surprise, or excusable neglect. (Id., § 2034.720, subd. (c)(1).) Third, Ertz has not shown that Plaintiffs would not suffer prejudice and fails to adequately address Plaintiff's arguments regarding prejudice. (Id., subd. (b); Opp. at p. 6 ["Plaintiffs spent considerable time, focus, and resources formulating their final trial readiness plan, arranging expert discovery, and adjusting their settlement positioning based on, among other things, the cost of deposing all of the designated experts and the explicit fact that Ertz had zero retained experts"]; Reply at pp. 4-5.) Indeed, Plaintiffs may have settled with the other defendants on the terms that they did in part precisely because it would eliminate the costs and risks arising from those defendants' designation of experts. Lastly, Ertz fails to provide a declaration of meet and confer efforts as required. (Id., § 2034.710, subd. (c).)

D. CCP § 128(a)(8)

Code

of Civil Procedure section 128, subdivision (a)(8) provides, "[e]very court shall have the power to do all of the following...[t]o amend and control its process and orders so as to make them conform to law and justice. An appellate

court shall not reverse or vacate a duly entered judgment upon an agreement or stipulation of the parties unless the court finds both of the following: (A) There is no reasonable possibility that the interests of nonparties or the public will be adversely affected by the reversal. (B) The reasons of the parties for requesting reversal outweigh the erosion of public trust that may result from the nullification of a judgment and the risk that the availability of stipulated reversal will reduce the incentive for pretrial settlement.” (Id., § 128, subd. (a)(8).)

The

Court finds no valid basis for the requested relief under Code of Civil Procedure section 128(a)(8). As previously stated, the Court disagrees with Ertz’s contention that the settlement of co-defendants after the expert disclosure cutoff materially altered the case’s configuration in a manner that could not have been anticipated when the discovery cutoff was established. Additionally, the Court agrees with Plaintiffs that this argument is an improper attempt to circumvent the strict requirements of Code of Civil Procedure, section 1008.

E.

Monetary

Sanctions

Plaintiffs request that this Court impose sanctions against Ertz and his counsel in the amount of \$3,375.00. (Rosensweig Decl., ¶ 5; Code Civ. Proc., § 1008, subd. (d) [A violation of C.C.P. §1008(a) “may be punished as a contempt and with sanctions as allowed by Section 128.7.”]; Id., 128.7.)

The Court finds that monetary sanctions are not appropriate and declines to award sanctions as requested by Plaintiffs.

Based on the foregoing, Ertz’s motion for relief is DENIED.

Plaintiffs’ request for monetary sanctions is DENIED.